

Shri Pradeep Kumar Pandey vs Smty Nirmala Devi And Anr on 30 May, 2012

Author: Arun Mishra

Bench: Arun Mishra

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN AT JAIPUR BENCH, JAIPUR

D.B. Civil Special Appeal (Writ) No. 574/2012
D.B. Civil Misc. Stay Application No. 5540/2012
(Shri Pradeep Kumar Pandey Versus Smt. Nirmala Devi & Another)

Date of Judgment :: 30th May, 2012

HON'BLE THE CHIEF JUSTICE MR. ARUN MISHRA
HON'BLE MR. JUSTICE MAHESH BHAGWATI

Mr. Sandeep Singh Shekhawat, counsel for the appellant

BY THE COURT (PER HON'BLE BHAGWATI, J.):

This intra court appeal is found to have been filed after the expiry of 181 days of the prescribed period of limitation.

2. For the reasons stated in the application, Misc. Application No. 12002/2012 filed under Section 5 of the Limitation Act is allowed and the delay of 181 days is condoned.

3. Adumbrated in brief, the facts of the case are that the appellant's marriage was solemnized with respondent no.1 on 20.2.1994 as per Hindu Rites and rituals. Thereafter some differences cropped up between both of them, as a result of which the respondent no.1 Smt. Nirmala deserted the house of appellant.

4. The appellant filed a divorce petition under Section 13 of Hindu Marriage Act in the Court of District Judge, Alwar. The respondent no.1 filed an application under section 24 of the Hindu Marriage Act beseeching maintenance allowance. The learned District Judge, vide its order dated 12.11.2009, allowed the application and directed Rs. 2000/- per month to be paid by the appellant husband to his wife and Rs. 1000/- each to his daughters namely Ayushi, Arushi and son Abhishek as maintenance, during the pendency of the divorce proceedings.

5. Aggrieved with the aforesaid order, the husband appellant filed a writ petition invoking extraordinary jurisdiction under Article 227 of the Constitution. The learned single Judge dismissed the writ petition observing that the petitioner-husband retired / terminated from the service of Private Happy School, Alwar from the post of Principal, where he got Rs. 1,10,546/- as post retiral benefits. While permitting the aforesaid maintenance allowance by District Judge, the learned Single Judge did not find error in the impugned order and concurring with the same, held that the amount of maintenance was given within the given parameters. Thus, the learned Single Judge did not find any ground to interfere with the impugned order of the District Judge, Alwar and dismissed the writ petition.

6. Having heard the learned counsel for the appellant and carefully perused the relevant material on record, it is noticed that the amount of maintenance allowance to be paid every month by the appellant to his wife and children does not seem to be abysmally high from any stretch of imagination. In the present times of galloping inflation, the amount of maintenance allowance of Rs. 2000/- to wife and Rs. 1000/- to each child (in total Rs. 5000/-) does not seem to be high and conversely the same is found to be just and proper, which does not warrant any intervention. Hence, the special appeal filed by the appellant, being bereft of any merit deserves to be dismissed, which stands dismissed accordingly.

7. Consequent upon the dismissal of special appeal, the stay application, filed herewith, does not survive and that also stands dismissed.

(MAHESH BHAGWATI), J.

(ARUN MISHRA), C.J.

DK

All Corrections made in the judgment/order have been incorporated in the judgment/order being emailed.

Dilip Khandelwal Personal Assistant